

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

**Court of Appeal Case No.
CA (PHC) 72/2022**

Provincial HC of Eastern Province
Holden in Trincomalee Case No.
HCT/REV/604/2019

MC Kuchchaveli Case No.
PPC/18/PVT/19

In the matter of an Appeal, as per Article 154 P (6) of the Constitution, read with the Provisions of High Court of the Provinces (Special Provisions) Act No.10 of 1996, against the final order dated 22.11.2021 in the case no: HCT/REV/604/19, by the Honorable Provincial High Court Judge of Trincomalee.

Siraj Khaleed,
No. 02, Wellur, Nilaweli.

Petitioner

Vs.

Samantha Anne Maralande,
No.32, Woodland Mawatha, Kohuwala,
Nugegoda.

Respondent

And between

Samantha Anne Maralande,
No.32, Woodland Mawatha, Kohuwala,
Nugegoda.

Presently At,
1036, Pulmude Street, Nilaweli,
Trincomalee.

Respondent- Petitioner

Vs.

Siraj Khaleed,
No. 02, Wellur, Nilaweli

Petitioner- Respondent

Siraj Khaleed,
No. 02, Wellur, Nilaweli

Vs.

Samantha Anne Maralande,
No.32, Woodland Mawatha, Kohuwala,
Nugegoda.

Before: Damith Thotawatte, J.
K.M.S. Dissanayake, J.

Counsels: B. Amanullah with Muzni Yakkob for the Petitioner- Respondent-Appellant.

Mahinda Jayawardena for the Respondent – Petitioner – Respondent.

Written submissions 08.10.2025 and 20.08.2026 by Petitioner - Respondent -
tendered on: Appellant.

08.12.2025 and 10.08.2026 by Respondent – Petitioner – Respondent.

Judgment Delivered: 31.08.2026

Introduction

The present appeal has been preferred by Siraj Khaleed, the Petitioner–Respondent–Appellant (hereinafter referred to as the “Appellant”), against the judgment dated 22.11.2021 delivered by the learned High Court Judge of the Provincial High Court of the Eastern Province holden in Trincomalee in Revision Application No. HCT/REV/604/2019.

By the impugned judgment, the learned High Court Judge set aside the order dated 02.10.2019 made by the learned Magistrate of Kutchaweli, functioning as the Primary Court Judge, in Case No. PPC/18/PVT/2019 under Part VII of the Primary Courts’ Procedure Act, No. 44 of 1979 (hereinafter referred to as the “PCP Act”).

Factual Background

The dispute concerns the land called Kadatkattai Kaadu, more fully depicted as Lot 402 in P.S.V.P. 58, containing in extent 3 Roods and 38 Perches, situated at Nilaweli in the Trincomalee District. The land was originally state land and was alienated to Sinnasaami Anna Pakkiyam by Grant No. 000017 of 1979. Both parties trace their competing claims to possession through this original grantee.

The Appellant's position is that he was in possession of the disputed land and that the Respondent had interfered with that possession. In support of that assertion, he relied upon documents executed before a Justice of the Peace and a Grama Niladhari, a survey plan, a letter issued by the surveyor, letters issued by welfare organizations in the area, and the fact that the originals of the grant and survey plan remained in his custody.

The Respondent disputes the Appellant's claim. Her position is that the original grantee agreed on 22.05.2017 to transfer the land to her and, after the necessary approval of the Divisional Secretary had been obtained, transferred it by Deed No. 08 dated 23.10.2017. She asserted that possession was delivered to her upon the transfer and that she thereafter possessed and maintained the land through her agent, Sathyaseelan Ganeshan. She relied, *inter alia*, upon the grant, the agreement, the deed, the relevant approvals, land-registry extracts, and affidavits from the original grantee and her agent.

The Respondent's agent did not reside permanently on the disputed land but visited it periodically to inspect and maintain it. According to the Respondent, when her agent visited the land on 30.05.2019, he observed that concrete fence posts had recently been erected and a temporary hut constructed thereon. Upon being informed of these developments, the Respondent instructed him to remove the fence posts and the temporary hut, which he accordingly did. Subsequent inquiries allegedly revealed that they had been erected by a person acting on behalf of the Appellant.

Thus, although both parties relied upon documents connected with the land, the immediate controversy before the Primary Court was not one concerning the ultimate ownership of the property. It was whether, within the statutory framework of Part VII of the Act, the Appellant or the Respondent was entitled to be maintained in possession.

Proceedings Before the Primary Court

The Appellant instituted proceedings in the Primary Court of Kutchaweli under section 66(1)(b) of the Act, alleging a dispute affecting land likely to cause a breach of the peace and seeking confirmation of his possession. The learned Primary Court Judge issued notice upon the Respondent and directed that it be affixed upon the disputed land. The Respondent appeared and disputed both the jurisdictional basis of the proceedings and the Appellant's claim to possession, asserting that she was in possession.

Upon considering the affidavits, counter-affidavits, annexed documents and written submissions tendered by the parties, the learned Primary Court Judge, by order dated 02.10.2019, determined that the Appellant had established possession of the disputed land on the date the information was filed. Accordingly, the Appellant was declared entitled to possession of the disputed land and protected against any disturbance of such possession otherwise than under the authority of an order or decree of a competent court.

Revision Application Before the Provincial High Court

Being aggrieved by the order dated 02.10.2019, the Respondent invoked the revisionary jurisdiction of the Provincial High Court of the Eastern Province holden in Trincomalee by filing Revision Application No. HCT/REV/604/2019.

After considering the pleadings, the record of the Primary Court, the written submissions and the oral submissions of counsels, the learned High Court Judge delivered judgment on 22.11.2021 concluding, *inter alia*, that the Appellant had failed to establish possession of the disputed land by the documents relied upon by him and had also failed to establish that he had been forcibly dispossessed by the Respondent.

The learned High Court Judge further found that the Respondent had established that she was in possession of the disputed land on the date on which the private information was filed, as contemplated by section 68(1) of the Act. The learned Judge also held that the Respondent had established an entitlement under section 69(2) and further that the Appellant (Respondent in the Revision application) had not established that he was forcibly dispossessed by the Respondent (Petitioner in the Revision application) under section 68(3) of the PCP Act. The learned High Court Judge further observed that the learned Primary Court Judge had failed properly to analyse sections 66, 68(1), 68(3) and 69.

The learned High Court Judge accordingly set aside the order dated 02.10.2019 holding that the Primary Court order was affected by illegality and procedural impropriety which had caused prejudice to the Respondent.

Appeal to the Court of Appeal

The Appellant, being dissatisfied with the judgment of the learned High Court Judge, invoked the appellate jurisdiction of this Court seeking setting aside the judgment dated 22.11.2021 of the learned High Court Judge and affirming of the order dated 02.10.2019 of the learned Primary Court Judge.

Grounds of Appeal

Although the Petition of Appeal and the written submissions contain several overlapping complaints, the grounds urged by the Appellant may conveniently be considered under the following headings:

- 1) failure to give adequate reasons for setting aside the Primary Court order and rejecting the Appellant's evidence of possession;
- 2) erroneously treated the dispute as involving forcible dispossession under section 68(3), although the issue was confined to possession under section 68(1);

- 3) erroneously relied upon section 69(2), although no right distinct from possession was in dispute;
- 4) failed to consider material evidence and the principal reasons upon which the Primary Court determined possession in favour of the Appellant; and
- 5) exercised revisionary jurisdiction without identifying exceptional circumstances or a material illegality warranting interference with the Primary Court order.

These grounds must be considered in the context of the statutory purpose of Part VII of the Act and the respective functions exercised by the Primary Court, the Provincial High Court in revision and this Court in appeal.

Statutory Scheme Governing the Dispute

Part VII of the Primary Courts' Procedure Act establishes a special and summary procedure for the prevention of breaches of the peace arising from disputes affecting land.

The jurisdiction conferred by this Part is preventive and provisional. It is intended to preserve public order by determining which party is to remain in possession, or continue to exercise a disputed right, until the civil rights of the parties are finally determined by a competent court. It does not authorize the Primary Court Judge to adjudicate conclusively upon title or ownership.

Section 68 — Disputes Relating to Possession

Section 68 governs disputes concerning possession of land. Under section 68(1), the Primary Court Judge must determine which party was in possession on the date the information was filed and declare that party entitled to possession. However, where a party establishes that he or she was forcibly dispossessed within the preceding two months, section 68(3) treats that party as having been in possession on the relevant date and permits restoration of possession.

As held in *Ramalingam v. Thangarajah*¹, the inquiry under section 68 concerns factual possession, not title or the ultimate right to possession. Even a person without title is entitled to protection against interference. Evidence of title is relevant only insofar as it assists in determining possession, particularly where the evidence of actual possession is evenly balanced

Section 69 — Disputes Relating to Other Rights

Section 69 applies where the dispute concerns a right to or in respect of land other than the possession of the land itself. It includes disputes relating to a right to cultivate, use, occupy in a particular manner, or exercise a right in the nature of a servitude.

The inquiry under section 69 is distinct from that under section 68. Where the controversy concerns possession of the land, the Court must proceed under section 68. Where it concerns the exercise of some other right affecting the land, section 69 becomes applicable.

Nature and Scope of Revisionary Jurisdiction

The revisionary jurisdiction of the Provincial High Court is an extraordinary and discretionary jurisdiction, designed to ensure that subordinate courts exercise the jurisdiction entrusted to them according to law. It is not an unrestricted rehearing of the dispute that was before the Primary Court.

The High Court is not entitled to interfere merely because it would have reached a different conclusion upon the same evidence. Revisionary intervention is justified where the impugned order is affected by illegality, material irregularity, procedural impropriety, a failure to consider material evidence, reliance upon irrelevant considerations, or a conclusion which no court properly directing itself could reasonably have reached.

A party invoking revision must ordinarily demonstrate exceptional circumstances justifying the exercise of that discretionary jurisdiction. Such circumstances may arise where the error identified has resulted in substantial prejudice or a miscarriage of justice and cannot be treated as a mere technical irregularity.

¹ (1982) 2 Sri LR 693

Scope of the Present Appeal

The present appeal is directed against the judgment of the Provincial High Court delivered in the exercise of its revisionary jurisdiction. This Court is therefore not called upon to conduct a fresh inquiry under sections 66 to 69 or to determine *de novo* which party had the stronger claim to possession.

The question before this Court is whether the learned High Court Judge acted within the proper limits of revisionary jurisdiction and whether the judgment under appeal is affected by an error of law, fact or principle sufficiently material to warrant appellate interference.

Analysis of the Grounds of Appeal

The first complaint of the Appellant is that the learned High Court Judge failed to give reasons, or adequate reasons, for setting aside the order dated 02.10.2019 made by the learned Primary Court Judge. It is also contended that the learned High Court Judge failed to address the factual and legal matters placed before Court in the Appellant's written submissions.

The duty to give reasons requires the judgment to disclose, with sufficient clarity, the material findings made by Court and the basis upon which those findings were reached. It does not require the Court to reproduce every item of evidence, recite every submission advanced by counsels, or answer separately every argument which does not affect the ultimate determination.

However, where the learned High Court Judge, upon considering the same evidence, arrives at a conclusion contrary to that reached by the learned Magistrate, particularly as to which party was in possession of the disputed land on the date the information was filed under the PCP Act, it is incumbent upon the learned High Court Judge to state clearly the reasons for departing from the learned Magistrate's determination.

The learned High Court Judge appears to have accepted the Respondent's claim of possession upon the cumulative effect of Deed No. 08 dated 23.10.2017, the approvals granted by the Divisional Secretary, the affidavit supporting the delivery of possession and the evidence that the land was periodically inspected and maintained through her agent. The learned Judge had also concluded that the learned Primary Court Judge had failed properly to evaluate that material and that the documents relied upon by the Appellant did

not satisfactorily establish his possession. However, the impugned order does not clearly explain how the material relied upon established that the Respondent remained in actual or constructive possession on 24.06.2019, the date on which the private information was filed.

The conclusion under section 68(1) is stated, but the evidentiary reasoning connecting the documents and the agent's activities to possession on the material date is not fully articulated.

The learned High Court Judge further stated that the learned judge of the Primary Court has analyzed section 68 (3) of the PCP Act. However, upon perusal of the order of the learned judge of the Primary Court had not analyzed section 68(3) and need not have done so as the Appellant had not invoked section 68(3) or claim that he had been forcibly dispossessed within the prescribed period. His case was that he remained in possession and that such possession had been obstructed or threatened. The Respondent likewise maintained that she continued to possess the land through her agent. Accordingly, the question of forcible dispossession had not arisen for determination.

In those circumstances, the decisive and only question arising for determination under section 68(1) was which party was in possession of the disputed land on the date the information was filed. The learned High Court Judge found that the Respondent had established possession of the disputed land under section 68(1) of the Act. However, the learned Judge also held that the Respondent had established her right to possession under section 69(2). The dispute in the present case concerned possession of the land itself, and not the exercise of any right in or over the land distinct from possession. Section 69 was therefore inapplicable. The reliance placed upon that provision demonstrates that the learned High Court Judge failed to identify the statutory provisions correctly that governed the dispute. Further, the finding under section 68(1) was not supported by a sufficient evaluation of the evidence relating to actual possession on the date on which the private information was filed. Accordingly, the erroneous reliance on section 69 cannot be treated as immaterial. It affected the legal basis upon which the revisionary jurisdiction was exercised and renders the ultimate order unsustainable. These were not harmless references. By invoking both forcible dispossession under section 68(3) and an "other right" under section 69, the High Court blurred three different statutory inquiries.

The duty to give reasons does not require a judgment or order to answer every submission or reproduce every document. However, It does require the decisive reasoning to be

comprehensible. The uncertainty created by the simultaneous reliance on sections 68(1), 68(3) and 69 renders the reasoning of the impugned judgment difficult to comprehend. This uncertainty is further compounded by the absence of any clear finding identifying the exceptional circumstances that warranted the exercise of revisionary jurisdiction. Although the existence of an alternative civil remedy did not absolutely bar revision, it made it especially necessary to identify the illegality or miscarriage of justice which required immediate intervention. The learned High Court Judge failed to undertake this essential exercise or to provide reasons sufficient to justify the revisionary intervention.

Further upon information being filed by the Appellant under section 66(1)(b) of the Act, the learned Primary Court Judge had issued notice upon the Respondent and directed that a copy thereof be affixed upon the disputed land. The Respondent did not appear in response to that notice but subsequently entered appearance after notice was sent to a different address furnished by the Appellant. In her order dated 02.10.2019, the learned Magistrate treated the Respondent's apparent lack of awareness of the notice affixed upon the land as a material circumstance militating against her claim of actual possession. This constituted a principal basis upon which the learned Magistrate determined the question of possession in favour of the Appellant. However, the learned High Court Judge failed to consider or address this material aspect of the learned Magistrate's reasoning before setting aside her order.

Conclusion

The dispute before the Primary Court concerned neither forcible dispossession within section 68(3) nor the exercise of a right in or over land under section 69. The controlling question was which party was in possession on 24.06.2019, the date upon which the private information was filed, as required by section 68(1).

The impugned judgment cannot be sustained due to the High Court's introduction of sections 68(3) and 69, and its failure to identify any reviewable error in the Primary Court's determination under section 68(1).

Accordingly, the judgment dated 22.11.2021 of the learned High Court Judge of the Provincial High Court of the Eastern Province holden in Trincomalee in HCT/REV/604/2019 is set aside. The order dated 02.10.2019 made by the learned Magistrate of Kutchaweli, functioning as the Primary Court Judge, in Case No. PPC/18/PVT/2019 is affirmed.

The parties remain at liberty to obtain a final determination of title, the validity of the disputed instruments and permanent entitlement to possession from a competent court. The provisional order under Part VII does not prejudice that right.

In all the circumstances, I make no order as to costs.

Judge of the Court of Appeal

K.M.S. Dissanayake, J.

I agree

Judge of the Court of Appeal